

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE 04/16/2026	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (No collect calls)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐	
				13b. RATING 14. METHOD OF SOLICITATION REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP) ☐	
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐					
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Government Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)		
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED

☐ INSPECTED

☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL

☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

42a. RECEIVED BY *(Print)*

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42b. RECEIVED AT *(Location)*

42c. DATE RECEIVED *(MM/DD/YYYY)*

42d. TOTAL CONTAINERS

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1. Listing of Incorporated Purchase Requisitions

Incorporated Purchase Requisition Numbers:

2. Section B - Supplies or Services and Prices/Costs

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0001		USCGC CALHOUN (WMSL 759) FY26 dockside definite items	1	
Contract Type:Firm Fixed Price				
		Unit Price		
		Extended Price		
	Description:			
Purchase Requisitions				

IDC Type: Not Applicable

Clauses incorporated by reference

None

Clauses incorporated by full text

None

3. Section C - Description/Specifications/Work Statement

Clauses incorporated by reference

None

Clauses incorporated by full text

None

4. Section D - Packaging and Marking

None

Clauses incorporated by reference

None

Clauses incorporated by full text

None

5. Section E - Inspection and Acceptance Terms

None

Clauses incorporated by reference

None

Clauses incorporated by full text

None

6. Section F - Delivery or Performance

None

Clauses incorporated by reference

None

Clauses incorporated by full text

3052.212-70

CONTRACT TERMS AND CONDITIONS APPLICABLE TO DHS ACQUISITION OF COMMERCIAL ITEMS (JULY 2023)

The Contractor agrees to comply with any provision or clause that is incorporated herein by reference to implement agency policy applicable to acquisition of commercial items or components. The provision or clause in effect based on the applicable regulation cited on the date the solicitation is issued applies unless otherwise stated herein. The following provisions and clauses are incorporated by reference: [The Contracting Officer should either check the provisions and clauses that apply or delete the provisions and clauses that do not apply from the list. The Contracting Officer may add the date of the provision or clause if desired for clarity.]

(a) Provisions.

_____ 3052.216-70 Evaluation of Offers Subject to An Economic Price Adjustment Clause.

_____ 3052.219-72 Evaluation of Prime Contractor Participation in the DHS Mentor Protégé Program.

_____ 3052.247-70 F.o.B. Origin Information.

_____ Alternate I

_____ Alternate II

_____ 3052.247-71 F.o.B. Origin Only.

X 3052.247-72 F.o.B. Destination Only.

(b) Clauses.

_____ 3052.203-70 Instructions for Contractor Disclosure of Violations.

_____ 3052.204-71 Contractor Employee Access.

_____ Alternate I

_____ Alternate II

_____ 3052.204-72 Safeguarding of Controlled Unclassified Information.

_____ Alternate I

_____ 3052.204-73 Notification and Credit Monitoring Requirements for Personally Identifiable Information Incidents."

_____ 3052.205-70 Advertisement, Publicizing Awards, and Releases.

_____ Alternate I

_____ 3052.209-72 Organizational Conflicts of Interest.

_____ 3052.209-73 Limitation on Future Contracting.

_____ 3052.215-70 Key Personnel or Facilities.

_____ 3052.216-71 Determination of Award Fee.

_____ 3052.216-72 Performance Evaluation Plan.

_____ 3052.216-73 Distribution of Award Fee.

X 3052.217-91 Performance. (USCG)

_____ 3052.217-92 Inspection and Manner of Doing Work. (USCG)

X 3052.217.93 Subcontracts. (USCG)

X 3052.217.94 Lay Days. (USCG)

X 3052.217-95 Liability and Insurance. (USCG)

X 3052.217-96 Title. (USCG)

X 3052.217.97 Discharge of Liens. (USCG)

X 3052.217-98 Delays. (USCG)

_____ 3052.217-99 Department of Labor Safety and Health Regulations for Ship Repair. (USCG)

_____ 3052.217-100 Guarantee. (USCG)

_____ 3052.219-71 DHS Mentor Protégé Program.

X 3052.228-70 Insurance.

_____ 3052.228-90 Notification of Miller Act Payment Bond Protection. (USCG)

_____ 3052.228-91 Loss of or Damage to Leased Aircraft. (USCG)

_____ 3052.228.92 Fair Market Value of Aircraft. (USCG)

_____ 3052.228-93 Risk and Indemnities. (USCG)

_____ 3052.236-70 Special Provisions for Work at Operating Airports.

X 3052.242-72 Contracting Officer's Representative.

(End of clause)

3052.228-70

INSURANCE (DEC 2003) – ADDENDUM

The Contractor shall, at its own expense, provide and maintain during the entire performance period of this contract, at least the kinds and minimum amounts of insurance required by this Clause as follows:

TYPE	AMOUNT
1) Workman's Compensation and Employer's Liability (including Federal Longshoremen and Harbor Worker's Insurance)	As legally required by the State wherein the work is being performed.
2) Comprehensive General Liability Insurance (including vessel liability reference HSAR 3052.217-95)	Personal Injury Liability: \$1 million per person \$1 million per occurrence
	Property Damage (may be included in general aggregate limits or combined single unit coverage) \$1 million per occurrence
3) Automobile Liability	Personal Injury Liability: \$1 million per person \$1 million per occurrence

Property Damage (may be
included in general aggregate limits or combined
single unit coverage): \$1 million per occurrence

4) If single general aggregate limits or combined single unit coverage is obtained for General Liability and/or Automobile Liability coverage, minimum amounts shall be the sum of the personal injury and property damage coverage required above. Umbrella Form Excess Liability insurance coverage shall be added to general liability and automobile liability coverage to determine if minimum insurance limits are met.

a. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective

(1) for such period as the laws of the State in which this contract is to be performed prescribe, or

(2) until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

b. As evidence that it has obtained the insurance specified in paragraph (a) of this clause, the contractor shall furnish the Contracting Officer with a certificate or certificates executed by an agent of the insurer authorized to execute such certificates. Such certificates shall be furnished prior to commencement of the work. Each certificate shall state that (name of insurer) has insured (name of contractor) awarded contract number (to be determined at time of award) for repair/alteration of applicable USCG ship in accordance with the Liability and Insurance clause and the Insurance Requirements clause contained herein.

c. The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance and shall make copies available to the Contracting Officer upon request.

d. "Government Installation" for this clause includes government vessels.

(End of 3052.228-70 Addendum)

7. Section G - Contract Administration Data

Requesting Office Address	
52000 SFLC LONG RANGE ENFORCER PL SURFACE FORCES LOGISTICS CENTER USCG 2401 HAWKINS POINT RD BALTIMORE MD 21226-5000 Phone: 347/997-0423 Contact Details: HYACINTH, MELISSA NICOLE Melissa.N.Hyacinth@uscg.mil	
Fax:	

COR Office Address	
52000 COR SFLC LONG RANGE ENFORCER PL 2401 HAWKINS POINT RD BALTIMORE MD 21226-5000 Phone: 515/238-8459	
Fax:	

Contact Details:
COUTURE, JACKSON L
Jackson.L.Couture@uscg.mil

Issuing Office Address

70Z085 CPD 2 - Oakland, CA
Commander
USCG-SFLC-CPD 2
1301 Clay Street, Suite 800N
Oakland CA 94612
Phone:
Contact Details:
KLOEPPPEL, Ms. ROBIN B
Robin.B.Kloeppel@uscg.mil

Fax:

Payment Office Address

USCG FINANCE CENTER
FINANCE CENTER USCG
1430A KRISTINA WAY
CHESAPEAKE VA 23326-1000
Phone:
Contact Details:

Fax:

Clauses incorporated by reference

None

Clauses incorporated by full text

None

8. Section H - Special Contract Requirements

Clauses incorporated by reference

None

Clauses incorporated by full text

None

9. Section I - Contract Clauses

Clauses incorporated by reference

Article Number	Reference Text
52.204-13	52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.204-19	52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

52.204-25	52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)
52.209-6	52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)
52.209-9	52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)
52.209-10	52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (NOV 2015)
52.219-6	52.219-6 NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (NOV 2020)
52.223-11	52.223-11 OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIAL HYDROFLUOROCARBONS (MAY 2024)
52.223-12	52.223-12 MAINTENANCE, SERVICE, REPAIR, OR DISPOSAL OF REFRIGERATION EQUIPMENT AND AIR CONDITIONERS (MAY 2024)
52.223-20	52.223-20 AEROSOLS (MAY 2024)
52.223-21	52.223-21 FOAMS (MAY 2024)
52.226-8	52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
52.232-16	52.232-16 PROGRESS PAYMENTS (NOV 2021)
52.232-18	52.232-18 AVAILABILITY OF FUNDS (APR 1984)
52.232-25	52.232-25 PROMPT PAYMENT (JAN 2017)
52.232-33	52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
52.232-33	52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
52.232-40	52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
52.242-2	52.242-2 PRODUCTION PROGRESS REPORTS (APR 1991)
52.242-5	52.242-5 PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (JAN 2017)
3052.217-90	3052.217-90 DELIVERY AND SHIFTING OF VESSEL (DEC 2003)
3052.222-70	3052.222-70 STRIKES OR PICKETING AFFECTING TIMELY COMPLETION OF THE CONTRACT WORK (DEC 2003)
3052.222-90	3052.222-90 LOCAL HIRE (JUN 2006)
3052.223-90	3052.223-90 ACCIDENT AND FIRE REPORTING (DEC 2003)

Clauses incorporated by full text

52.233-2

SERVICE OF PROTEST (SEPT 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Robin Kloeppel.

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.252-2

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

(End of clause)

52.252-6

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any _____ (48 CFR _____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.212-4

Contract Terms and Conditions-Commercial Products and Commercial Services (Aug 2025) (DEVIATION 25-21)

FAR Class Deviation 25-21 for FAR Part 12 in Support of Executive Order on Restoring Common Sense to Federal Procurement, Attachment 1: FAR Part 12 Solicitation Provisions and Contract Clauses Revisions

(a)*Definitions.* The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b)*Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c)*Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the

Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes*. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(t) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall-

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

FAR Class Deviation 25-21 for FAR Part 12 in Support of Executive Order on Restoring Common Sense to Federal Procurement, Attachment 1: FAR Part 12 Solicitation Provisions and Contract Clauses Revisions

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice*. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment-*

(1) *Items accepted*. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment*. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) *Discount*. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments*. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

FAR Class Deviation 25-21 for FAR Part 12 in Support of Executive Order on Restoring Common Sense to Federal Procurement,
Attachment 1: FAR Part 12 Solicitation Provisions and Contract Clauses Revisions

(5) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by 33.211 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the

FAR Class Deviation 25-21 for FAR Part 12 in Support of Executive Order on Restoring Common Sense to Federal Procurement,
Attachment 1: FAR Part 12 Solicitation Provisions and Contract Clauses Revisions

contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(i) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon-

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Tennination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

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(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations.*

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

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(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(l) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record.* This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

FAR Class Deviation 25-21 for FAR Part 12 in Support of Executive Order on Restoring Common Sense to Federal Procurement, Attachment 1: FAR Part 12 Solicitation Provisions and Contract Clauses Revisions

(End of clause)

52.204-23 (DEVIATION)

(DEVIATION) PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEVIATION 2020-05 Rev 3) (July 2024)

(a) *Definitions.* As used in this clause-

Kaspersky Lab covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab covered entity.

Kaspersky Lab covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

(b) *Prohibition.* Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits Government use of any Kaspersky Lab covered article. The Contractor is prohibited from—

- (1) Providing any Kaspersky Lab covered article that the Government will use on or after October 1, 2018; and
- (2) Using any Kaspersky Lab covered article on or after October 1, 2018, in the development of data or deliverables first produced in the performance of the contract.

(c) *Reporting requirement.*

(1) In the event the Contractor identifies covered article provided to the Government during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report, in writing, via email, to the Contracting Officer, Contracting Officer's Representative, and the Enterprise Security Operations Center (SOC) at NDAA Incidents@hq.dhs.gov, with required information in the body of the email. In the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil>. For indefinite delivery contracts, the Contractor shall report to the Enterprise SOC, Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) and Contracting Officer's Representative(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil>.

(2) The Contractor shall report the following information pursuant to paragraph (c)(1) of this clause:

- (i) Within 3 business days from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (Original Equipment Manufacturer (OEM) number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.
- (ii) Within 10 business days of submitting the report pursuant to paragraph (c)(1) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a Kaspersky Lab covered article, any reasons that led to the use or submission of the Kaspersky Lab covered article, and any additional efforts that will be incorporated to prevent future use or submission of Kaspersky Lab covered articles.

(d) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts, including subcontracts for the acquisition of commercial items.

(End of clause)

10. Section J - List of Documents, Exhibits, and other Attachments

None

Clauses incorporated by reference

None

Clauses incorporated by full text

LIST OF ATTACHMENTS

Attachment	Description
(1)	70Z08526QLREP0015, Attachment 1 – Price Schedule, REV0
(2)	70Z08526QLREP0015, Attachment 2 – PWS_CALHOUN (WMSL 759) DS FQ3_REV_0
(3)	70Z08526QLREP0015, Attachment 3 - Non-Disclosure Agreement
(4)	70Z08526QLREP0015, Attachment 4 – Past Performance Questionnaire
(5)	70Z08526QLREP0015, Attachment 5 – Request for Questions USCGC CALHOUN (WMSL-759)
(6)	70Z08526QLREP0015, Attachment 6 - Cutter Work Hours_CALHOUN FQ4 FY26
(7)	70Z08526QLREP0015, Attachment 7 - FLETC Base Access and Pier Lay Down
(8)	70Z08526QLREP0015, Attachment 8 - Consolidated List of references_CALHOUN DS FQ4 FY26

11. Section K - Representations, Certifications, and Other Statements of Offerors

Clauses incorporated by reference

Article Number	Reference Text
52.203-18	52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION (JAN 2017)
52.225-25	52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN-REPRESENTATION AND CERTIFICATIONS (JUN 2020)

Clauses incorporated by full text

52.209-7

INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules)

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror _____ has _____ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.219-1

SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

(a) Definitions. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart [19.14](#)).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in [38 U.S.C. 101\(2\)](#), with a disability that is service-connected, as defined in [38 U.S.C. 101\(16\)](#), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at [38 U.S.C.101\(2\)](#)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b) (1) The North American Industry Classification System (NAICS) code for this acquisition is _____[insert NAICS code].

(2) The small business size standard is _____[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that—

(i) it _____ is, _____ is not a small business concern; or

(ii) It _____ is, _____ is not a small business joint venture that complies with the requirements of 13 CFR

121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____ .]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it _____ is, _____ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it _____ is, _____ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it _____ is, _____ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____ .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it _____ is, _____ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____ .]

(6) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it _____ is, _____ is not a veteran-owned small business concern.

(7) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it _____ is, _____ is not an SDVOSB concern.

(8) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it _____ is, _____ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture_].

(9) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It _____ is, _____ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It _____ is, _____ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____ Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under [15 U.S.C.645\(d\)](#), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

QUESTIONS

Questions related to the solicitation must be emailed to William Zittle (william.r.zittle@uscg.mil), with a courtesy copy to Contracting Officer, Robin Kloeppel (robin.b.kloeppel@uscg.mil), no later than 1200 Eastern Standard Time (EST) 24 April 2026. After this date further requests may not be accepted due to time constraints. All questions shall be submitted via email using Attachment 5 - Request for Questions USCGC CALHOUN (WMSL-759).(End of provision)

12. Section L - Instructions, Conditions and Notices to Offerors

Clauses incorporated by reference

Article Number	Reference Text
52.203-11	52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEP 2024)
52.204-7	52.204-7 SYSTEM FOR AWARD MANAGEMENT (NOV 2024)
52.237-1	52.237-1 SITE VISIT (APR 1984)

Clauses incorporated by full text

52.252-5

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any _____ (48 CFR Chapter _____) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

SAM EXCLUSION DELAY ADDENDA

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation.

Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

FAR 52.212-1

Instructions to Offerors— COMMERCIAL PRODUCTS & COMMERCIAL SERVICES (AUG 2025) (DEVIATION25-21)
ADDENDUM

QUOTE PREPARATION INSTRUCTIONS

Submit quotes via email to Contracting Officer at Robin.B.Kloeppel@uscg.mil and Contract Specialist at william.r.zittle@uscg.mil.

Quote Validity: Period for acceptance of offers shall be **120** days.

- A. These instructions prescribe the format and approach to be used in the development and presentation of quotes. They are designed to ensure the submission of information essential to the quote.
- B. Quotes shall be prepared in accordance with these instructions, providing all required information in the format specified. Failure of a quote to show compliance with these instructions may be grounds for exclusion of the quote from further consideration.
- C. Offerors are cautioned that the government intends to evaluate quotes and make award without discussions, therefore, initial quotes should represent the best possible effort. FAR 15.306(a)(3) ("Award may be made without discussions if the solicitation states that the Government intends to evaluate quotes and make award without discussions. If the solicitation contains such a notice and the Government determines it is necessary to conduct discussions, the rationale for doing so shall be documented in the contract file (see the provision at 52.215-1) (10 U.S.C. 3303(a)(2) and 41 U.S.C. 3703(a)(2)).").
- D. The Coast Guard reserves the right to incorporate into the resulting contract all or any portion of the Offeror's quote.
- E. The quote shall concisely describe the Offeror's response to the submission instructions of the solicitation. Elaborate artwork, expensive paper or bindings, and expensive visual or other aids are not necessary or encouraged.
- F. All pages in the quote shall be numbered and identified with the quote's name **CALHOUN DS FQ4 FY26, RFQ70Z08526QLREP0015, and [date of quote]**. A table of contents should be provided with figures and tables listed separately where necessary. (These pages are excluded from the page count.) Subsequent revisions should be similarly identified to show revision number and date.
- G. All pages containing text shall be typewritten or printed on 8 ½ x 11-inch paper, with at least single spacing. Margins on all four edges of each page will be at least one inch. A page printed on both sides shall be counted as two pages. Quotes shall not be supplemented by a package or reference documents. Pages exceeding the limitations will be removed from the quote by the Contracting Officer and returned to the Offeror to ensure that they are not evaluated.
- H. An email submission shall not exceed 10mb. Quotes exceeding that size should be sent in separate emails and clearly labeled in the subject 1 of 2 for example.

I. QUOTE CONTENT

- A. Cover Letter. The Offeror shall provide a one (1) page cover letter that includes the Offeror's address, point of contact information, Unique Entity ID number, Taxpayer Identification Number, and written confirmation that the anticipated period of performance for the contract is sufficient to complete the requirements in Attachment 2_CALHOUN (WMSL 759) Specification for DS FY26 FQ4_Rev 0.
- B. Technical Capability.
- The Government will evaluate the technical capability of the Offeror to perform the requirements within the period of performance based on an assessment of the contractor's planning documentation.
- The Offeror shall provide a planning document for the CALHOUN DS FQ4 FY26 in graphical format (e.g., Gantt Chart, etc.). Each planning document must be legible and have the following characteristics:
- Shows overall period of performance for each work item provided in Attachment 2_CALHOUN (WMSL 759) Specification for DS FY26 FQ4_Rev 0 with start and stop dates for each work item and all major sub-tasks for each work item.
 - Contains due dates for all major sub-tasks required for Critical Inspection Reports (CIR), along with the submission requirement for CIRs.
 - Contains dates for any events requiring Coast Guard Inspector presence.

- d. Identifies all work item tasks that require Technical Representative and Certified Coating Inspector assistance.
- e. Identifies all work item tasks that require subcontractor assistance.
- f. Identifies the critical path(s) for the project. The critical path(s) is defined as the longest path through the project, comprised of tasks that cannot absorb delays without risking delay of the overall project completion as planned. Calculations for critical path must not include incidental tasks or supporting work items such as Temporary Services, Fire Protection and Prevention, and Dry Docking as applicable.
- g. Identifies tasks with float (also known as "slack"). Float is defined as the amount of time a task can be delayed without causing a delay to subsequent tasks (free float) or work item completion (total float). Show the amount of float (in days) for each task as applicable.
- h. Shows start/finish or finish/start relationships and dependencies for all tasks that have work constraints or require coordination of work activities.

Offerors shall provide a written narrative of no more than ten (10) pages providing amplifying information regarding the Offeror's technical capabilities to complete all work within the prescribed performance period. At a minimum the written narrative should explain the following:

- a. Any performance risks and risk strategies the Offeror will use to meet or overcome schedule constraints.
- b. How environmental challenges given the geographic location and typical climate during the performance period will be mitigated to ensure work items remain on schedule. Subsequent to contract award, the Government will require the Offeror to provide the Preservation Plan and Ambient Conditions Control Plan described in SFLC Standard Specification 6310, and the Heavy Weather Plan described in SFLC Standard Specification 0000.
- c. How the Offeror plans to limit disruptions to cutter services, specifically sewage, grey water, potable water, air conditioning, refrigeration, and electrical power.
- d. The Offeror's quality assurance and quality control approach that will be employed to ensure satisfactory and timely completion of all work.
- e. The Offeror's surge capacity to absorb growth and maintain schedule. Include any written agreements or purchase orders with Technical Representatives and subcontractors to show availability for the identified time periods in the planning document. Written agreements or purchase orders do not count against the ten (10) page limitation.

Include all required information, **EXCLUDING any reference to price**. Each technical quote must be sufficiently specific, detailed and complete to clearly and fully demonstrate to the government that the Offeror has a thorough knowledge and understanding of the technical requirements. Previously submitted data will not be used in the evaluation of quotes.

C. Past Performance Information.

- a. The Offeror shall identify at least one (1) but not more than three (3) relevant (similar in nature, scope, and complexity to the work items provided in Attachment 2_CALHOUN (WMSL 759) Specification for DS FY26 FQ4_Rev 0 and recent (completed within the last (3) three years) federal, state, or local government, or private contracts performed by the Offeror as the prime contractor. Each contract shall be identified using **Attachment 4 Past Performance Questionnaire**. The government may consider other Contractor Performance Assessment Reporting System (CPARS) information.
- b. Past performance information shall demonstrate customer satisfaction with overall job performance and quality of completed product/service for the same or similar type contract. If the quote does not include any reference to contracts performed within the last three years, the Offeror must include a statement providing the reason for the omission.
- c. Offerors are cautioned to submit sufficient information to permit a meaningful assessment of past performance. Offerors may be asked to clarify certain aspects of their quote or respond to adverse past performance information to which the Offeror has not previously had an opportunity to respond. Adverse past performance is defined as past performance information that supports a less than satisfactory rating on any evaluation element or any unfavorable comments received from sources without a formal rating system.
- d. If a subcontractor will perform work that is estimated to account for **25% or more** of the total evaluated price, the above data

must also be provided for the subcontractor with respect to the nature, scope and complexity of the work the subcontractor will perform. If a joint effort or teaming arrangement is proposed, the Offeror shall submit sufficient information to permit a meaningful assessment of the proposed team or subcontractor's past performance while working in such arrangements.

D. Price.

a. The Offeror shall completely fill-out Attachment 1_Price Schedule CALHOUN (WMSL 418) DS FY26 FQ4, in Microsoft Excel™ (.xlsx). Insert proposed unit and extended prices into the Pricing Schedule for each work item listed. All prices shall be rounded to the nearest whole dollar. The extended price for each work item shall be added together to derive the total price. A completed and electronically signed copy of the Pricing Schedule in portable document format (pdf) shall be submitted. A completed copy of the Pricing Schedule in Microsoft Excel™ (.xlsx) format shall also be submitted.

b. If there is not adequate price competition, Offerors may be required to submit information other than cost or pricing data to support a determination of price reasonableness.

E. Additional Submissions.

a. Signed SF1449. Complete blocks 12, 17a, and 30a, b, and c of the SF1449. In doing so, the offeror accedes to the contract terms and conditions as written in the SOLICITATION, with attachments. The SOLICITATION constitutes the model contract.

b. Signed Solicitation Amendments (SF-30s) that were issued.

c. Proof of enrollment in E-verify per clause FAR 52.222-54 – Employment Eligibility Verification.

d. Proof of insurance (Statement of coverage from current insurance carrier).

e. List of ALL subcontractors that the Offeror anticipates subcontracting to. The list shall include the subcontractor's name, address, point of contact and phone number; the work item listed in the Pricing Schedule the subcontractor will perform work under; and the percentage of work the subcontractor will perform. If a work item requires a Certified Technical Representative or Qualified Technical Representative, the Offeror shall confirm in writing the subcontractor meets the stated requirement. Technical Representatives include Certified Coating Inspectors, Certified Non-Destructive Test Inspectors, Weld Examination Inspectors, and Marine Chemists.

f. This solicitation may contain welding line items. As a matter of responsibility, the offeror's quote shall provide the necessary welding certifications and qualifications as required by the specification for the applicable work item(s) per SFLC Standard Specification 0740. Subsequent to contract award, the Government will require the Contractor to submit applicable certifications and qualifications to the COR for any welding to be performed on any proposed change request.

g. Necessary fill-ins and certifications in provisions.

h. The last day to request the drawings regarding this solicitation is 24 APRIL 2026. After this date, further requests may not be accepted due to time constraints. To request the technical package, contact the Contracting Specialist. All requests should identify the solicitation number 70Z08526QLREP0015. Some references listed in the Specification, under "Consolidated List of References," are subject to Export Control limitations or have otherwise restricted distribution and have been deemed "limited access" and "export controlled" packages. In order to access these documents, vendors must be certified as a US or Canadian contractor by the Joint Certification Program (JCP) administered by the Defense Logistic Information Service (DLIS). Instructions and procedures for being certified by JCP can be found at: <https://www.dla.mil/HQ/LogisticsOperations/Services/JCP/>. Only those vendors that have current certification by JCP will be able to be granted explicit access to these packages by the USCG. Requests for the technical package, to include the Joint Certification Program number and fully completed Attachment (3), Non-Disclosure Agreement, must be submitted to Contract Specialist: William Zittle (william.r.zittle@uscg.mil) no later than 1200 Eastern Standard Time (EST) 24 APRIL 2026. Please courtesy copy Contracting Officer: Robin B. Kloeppel (Robin.B.Kloeppel@uscg.mil); on the email request.

Reference FAR 52.211-3 Availability of Specifications Not Listed in the GSA Index of Federal Specifications, Standards and Commercial Item Descriptions.

(End of Provision)

13. Section M - Evaluation Factors for Award

Clauses incorporated by reference

None

Clauses incorporated by full text

52.212-2 (DEVIATION)

FAR 52.212-2 Evaluation-Commercial Products and Commercial Services (Aug 2025) DEVIATION 25-21)

I. GENERAL INFORMATION

A. The Government will award a contract resulting from this solicitation to the responsible Offeror, whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

1. Technical Capability
2. Past Performance
3. Price

B. Technical Capability is more important than Past Performance. When combined, Technical Capability and Past Performance are **SIGNIFICANTLY MORE** important than Price. The Government will use best value trade-off to determine the awardee. If technical capability and past performance quality assessments converge in terms of equality, price will become the determinative factor in the best value tradeoff decision.

C. It is anticipated that a written notice of award or acceptance of an offer will be emailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the offer. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

D. The Government reserves the right to award a contract on the basis of evaluation of the original submission without discussion.

II. TECHNICAL CAPABILITY

A. The Government will evaluate quotes that demonstrate the Offeror's understanding of the scope of work and ability to successfully accomplish the work within the period of performance more favorably. Conversely, a less favorable evaluation will be given to quotes showing a lesser understanding or lesser ability to successfully perform the requirements by failing to demonstrate sound project management or lacking sufficient detail to determine if the Offeror identified performance risks and schedule constraints based on the scope of work. The Offeror's failure to include adequate information about all or parts of any subfactor for Technical Capability or provide an acceptable explanation for the omission in the narrative may be found to contain deficiencies and will result in a very low assessment of quote quality.

B. The assessment process will result in an assessment of Technical Capability as per the table below:

Technical Capability Subfactor	More Favorable Consideration (Strengths)	Less Favorable Consideration (Weaknesses)
Period of performance for work items and major subtasks	All work items and associated major sub tasks are included and clearly labeled in an easy-to-read format. Start and finish dates for tasks and subtask	All work items NOT included or broken down into major subtasks. Unable or difficult to determine start or finish dates for work items with multiple

	are logically sequenced with realistic durations given the scope of work.	configuration items or work components. Duration of tasks clearly not realistic given scope of work.
Due dates for major subtasks for CIRs; CIR submission shown	All major subtasks to support CIR requirements logically scheduled to be complete on or before CIR due date. CIR requirement clearly labeled. Any CIR submission scheduled after CIR date justified in narrative with remedial actions to avoid schedule slip.	Major subtasks to support CIR requirements out of sequence or scheduled after CIR due date. CIR requirement NOT shown or labeled. CIR submission scheduled after CIR date without explanation. Remedial actions to avoid schedule slip NOT addressed.
Dates for Coast Guard (CG) Inspector presence	All work items and major subtasks requiring CG Inspector presence clearly labeled. CG Inspector presence for incidental and supporting task, and for the Offeror's QA and QC approach is addressed in narrative.	CG Inspector presence NOT scheduled or labeled for applicable work items or major subtasks. CG Inspector presence NOT addressed in narrative.
Dates for Technical Representative (Tech Rep)	All work items and major subtasks requiring Tech Reps, including Certified Coating Inspector, identified. Dates for Tech Rep services provided and labeled. Agreements or purchase orders for Tech Rep support during scheduled dates provided.	All work items and major subtasks requiring Tech Reps, including Certified Coating Inspector, NOT identified. Dates for Tech Rep services not provided or inconsistent with task scheduling. Explanation for lack of Tech Rep scheduling and remedial actions for Tech Rep availability NOT provided in narrative.
Work items and dates for Subcontractors	All work items and major subtasks allocated to subcontractors identified. Dates for subcontracted tasks and services provided and labeled. Agreements or purchase orders for subcontractor support during scheduled dates provided.	Subcontractors NOT identified for applicable work items and major subtasks. Dates for subcontracted work, including tasks or services to be performed NOT provided or inconsistent with task scheduling. Explanation for lack of subcontractor scheduling and remedial actions for subcontractor availability NOT provided in narrative.
Critical Path	Critical path highlighted or visually recognizable and identifies constrained tasks that cannot absorb delays without impacting overall schedule and on-time completion. Performance risks and risk mitigation strategies addressed in narrative.	Critical path is not identified or incorrectly identifies incidental or supporting tasks. Performance risks and risk mitigation strategies for constrained tasks NOT addressed in narrative.
Float and float calculations	Tasks with float clearly identified with calculated total float for the work item provided.	Does not identify float in any tasks. Does not provide calculated float available before delaying task completion or impacting the start or finish of a dependent task.
Work item relationships and dependencies.	Visually shows start/finish or finish/start relationships and dependencies for all tasks with work constraints or require coordination of work activities.	Task relationships and dependencies are NOT shown. Unable or difficult to determine work constraints or required coordination of work activities between tasks to determine impact of any schedule slip.
*Note: Failure to include all or part of any subfactor or provide an acceptable explanation for the omission in the narrative may be deemed deficient and may result in a technical capability rating of Marginal or Unsatisfactory. Strengths and weaknesses will be evaluated and rated on a scale ranging from Excellent to Unsatisfactory.		

PAST PERFORMANCE

A. The Government will assess the offeror's probability of meeting the solicitation requirements based on the offeror's demonstrated performance record. Relevant and timely past performance information will be evaluated to determine whether the offeror performed on the offeror's current or past contracts. Relevant project criteria are: ship repair, performance as the prime contractor, period of performance completed, similar value, and similar complexity to the statement of work for this project. The Government may use information submitted by the offeror, and information obtained from the CPARS, other agencies, questionnaires, or personal knowledge. In reviewing relevant past performance, the Government will gauge quality based on performance risk.

1. Quality of Product: Offeror's ability to comply with contract requirements, apply effective quality assurance and controls, adequacy of materials and submittals, and correction of deficiencies.
2. Schedule: Offeror's use of the planning document or other project management tool to manage work scheduling and progress, ability to meet scheduled dates for work items and major subtasks, and application of effective strategies to manage project risks and work constraints.
3. Management: Offeror's effectiveness with administration and communications, managing company personnel and subcontractors, and responsiveness to safety concerns and customer needs.

B. In general, a CPARS past performance rating of Exceptional will be considered more favorable than Very Good and so forth. An unexplained CPARS past performance rating of Marginal or Unsatisfactory in any evaluated area may have a substantial impact on the risk of past performance.

Past Performance Subfactors	More Favorable Consideration (Lower Performance Risks)	Less Favorable Consideration (Higher Performance Risks)
Quality	Workmanship or employees and subcontractors consistently exceeded contractual requirements. Provided innovative solution to improve performance. Applied Industry best practices to achieve best possible results. Employed an efficient QA system and controls to assure quality of product. Work was accomplished with minimal oversight or technical direction. Few minor problems if any, for which corrective actions taken were highly effective.	Met minimal standards or did not meet all contractual requirements. Questionable quality of product. Rework commonplace. Required unnecessary QA efforts by Government or created delays due to poor workmanship and needed rework. Slow to report or react to reported issues. Used substandard, poor condition, or nearly expired materials. Deficiencies or weaknesses were not cured during contract performance period. Corrective actions appeared or were ineffective.
Schedule	Sound project management plan. Efficiently progressed through work. Easily adjusted work plans to overcome challenges and maintain schedule. Subcontractors scheduling integrated and managed to ensure efficient production. Maximized opportunities based on available resources. Complete understanding of work item dependencies, available float, and critical path. Tasks started and finished on time. Provided accurate updates and skillfully managed schedule risks. Finished on time or early.	Insufficient planning or lack of understanding of scope. Planning document difficult to use to predict check points or monitor progress. Work items out of sequence or missing tasks. Work plan did not match resources. Used unrealistic task durations. Planning rarely coordinated. Task relationships and dependencies not known or managed. Daily production inconsistent with published schedule. Government constantly adjusting to accommodate or facilitate work. Poor production management

		caused constant schedule slip. No risk management to preserve schedule and prevent delays. Needed contract extension to complete base work.
Management	Excellent communication skills. Very easy to work with. Welcomed Government input. Honesty, integrity and professionalism consistently highlighted. Shared common goals for quality, timeliness, and safety of work. Made sound recommendations that minimized project risks. Found ways to complete growth to prevent schedule slip.	Did not provide timely notifications. Management of employees, subcontractors, and tech reps lacking. Rarely knew subcontractor work status if at all. Attempted to work around regulations or by-pass certifications and standards. Cited examples of unreasonableness, appearances of uncaring behavior or actions, or casting blame. Difficult to work with. Late with reports and deliverables. Did not follow up or provided timely response to questions or concerns.

The Government's evaluation of the Offeror's past performance will result in a Overall performance risk assessment based on confidence ratings per the following definitions. The confidence rating will be converted into a rating scale ranging from Very good to Unsatisfactory. If records are not relevant, a rating of Neutral will be assigned.

Rating	Description
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.
Neutral	No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. This is neither a negative nor positive assessment.

C. The Government reserves the right to verify claims made by the Offeror and not to consider relevant those that are not substantiated.

D. Offerors are reminded that the Government reserves the right to obtain past performance information from any source available.

E. Offerors with no relevant past or present performance history or the Offeror's performance record is so limited that no assessment rating can be reasonably assigned shall receive the rating "neutral".

PRICE

A. Price will be evaluated on the **total evaluated price** for the completion of the contract. The evaluated total price of the Offeror will be calculated by totaling the proposed extended prices of all work items listed in **Attachment 1. Price Schedule CALHOUN (WMSL 418) DS FY26 FQ4**. The quantities provided are estimates for evaluation purposes only. The offeror's completed Pricing Schedule shall represent the best price in response to the solicitation. The price shall be evaluated to determine fair and reasonable pricing in accordance with FAR parts 12 and 15 procedures as determined by the Contracting Officer.

B. Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).